

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.						1. REQUISITION NUMBER		PAGE 1 OF 58					
2. CONTRACT NUMBER		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER M6700126Q0040		6. SOLICITATION ISSUE DATE 07 May 2026					
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Tiffany Morris				b. TELEPHONE NUMBER (No collect calls) 910-451-3017		8. OFFER DUE DATE/ LOCAL TIME 20 May 2026 01:00 PM					
9. ISSUED BY COMMANDING GENERAL MCB CAMP LEJEUNE, BLDG 1212 PSC BOX 20004 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Tiffany Morris, Email: tiffany.morris@usmc.mil Telephone: 910-451-3017				CODE M67001		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ECONOMICALLY DISADVANTAGED 493190 ☒ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: 8(A) USD 36,500,000.00							
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☒ INVITATION ☐ FOR QUOTE ☐ FOR BID ☐ PROPOSAL (RFQ) (IFB) (RFP)							
15. DELIVER TO CODE				16. ADMINISTERED BY CODE									
See Continuation													
17a. CONTRACTOR/OFFEROR CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE									
TELEPHONE NUMBER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM									
19. ITEM NUMBER		20. SCHEDULE OF SUPPLIES/SERVICES				21. QUANTITY		22. UNIT		23. UNIT PRICE		24. AMOUNT	
		See Continuation											
		(Use Reverse and/or Attach Additional Sheets as Necessary)											
25. ACCOUNTING AND APPROPRIATION DATA See Continuation								26. TOTAL AWARD AMOUNT (For Government Use Only)					
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☒ ARE NOT ATTACHED								☐ ARE ☐ ARE NOT ATTACHED					
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED													
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED						☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: See Continuat							
30a. SIGNATURE OF OFFEROR/CONTRACTOR						31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)							
30b. NAME AND TITLE OF SIGNER (Type or print)			30c. DATE SIGNED			31b. NAME OF CONTRACTING OFFICER (Type or print)			31c. DATE SIGNED				

Solicitation/Contract Form Continuation

PERSONALLY OWNED VEHICLE (POV) STORAGE

0003

Product Service Code: S215

0004

Product Service Code: S215

Option Line Item
1003

Product Service Code: S215

Option Line Item
1004

Product Service Code: S215

Option Line Item
2003

Product Service Code: S215

Option Line Item
2004

Product Service Code: S215

Option Line Item
3003

Product Service Code: S215

Option Line Item
3004

Product Service Code: S215

Option Line Item
4003

Product Service Code: S215

Option Line Item
4004

Product Service Code: S215

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Estimated Quantity	Unit	Unit Price	Amount
0001	Secured storage and maintenance of Privately Owned Vehicles. Will include minimal monthly maintenance required to keep vehicles in running condition. in accordance with Performance Work Statement. Estimated Quantity: 1 to 1,200 vehicles. Billing will be computed at the rate listed below, based on the total number of POVs in storage on the last day of the month. Vehicles stored for 1-15 days will be billed at half the monthly rate listed below. Vehicles stored for over 15 days will be billed for the entire month. Monthly billing rate: 1-100 Vehicles: \$ _____ Per Month, Per Vehicle 1-250 Vehicles: \$ _____ Per Month, Per Vehicle 1-500 Vehicles: \$ _____ Per Month, Per Vehicle 1-750 Vehicles: \$ _____ Per Month, Per Vehicle 1-1000 Vehicles: \$ _____ Per Month, Per Vehicle 1-1200 Vehicles: \$ _____ Per Month, Per Vehicle Pricing Arrangement: Firm Fixed Price	1,200	Each		
0002	Towing Services Regular Tow Truck Towing Services to remove/tow Personally Owned Vehicles (POVs) from Contractor's facility to other designated area, in accordance with Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
0003	Towing Rollback Towing Rollback to remove/tow Personally Owned Vehicles (POVs) from Contractor's facility to another designated area, in accordance with Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
0004	Towing Dolly Services Towing Dolly services to remove/tow a POV from the Contractor's facility to another designated area, in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
	Secured storage and maintenance of Privately Owned Vehicles. Will include minimal monthly maintenance required to keep vehicles in running condition. in accordance with Performance Work Statement. Estimated Quantity: 1 to 1,200 vehicles. Billing will be computed at the rate listed below, based on				

Option Line Item 1001	the total number of POVs in storage on the last day of the month. Vehicles stored for 1-15 days will be billed at half the monthly rate listed below. Vehicles stored for over 15 days will be billed for the entire month. Monthly billing rate: 1-100 Vehicles: \$ _____ Per Month, Per Vehicle 1-250 Vehicles: \$ _____ Per Month, Per Vehicle 1-500 Vehicles: \$ _____ Per Month, Per Vehicle 1-750 Vehicles: \$ _____ Per Month, Per Vehicle 1-1000 Vehicles: \$ _____ Per Month, Per Vehicle 1-1200 Vehicles: \$ _____ Per Month, Per Vehicle Pricing Arrangement: Firm Fixed Price	1,200	Each		
Option Line Item 1002	Towing Services Regular Tow Truck Towing Services to remove/tow Personally Owned Vehicles (POVs) from Contractor's facility to other designated area, in accordance with Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
Option Line Item 1003	Towing Rollback Towing Rollback to remove/tow Personally Owned Vehicles (POVs) from Contractor's facility to another designated area, in accordance with Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
Option Line Item 1004	Towing Dolly Services Towing Dolly services to remove/tow a POV from the Contractor's facility to another designated area, in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
Option Line Item 2001	Secured storage and maintenance of Privately Owned Vehicles. Will include minimal monthly maintenance required to keep vehicles in running condition. in accordance with Performance Work Statement. Estimated Quantity: 1 to 1,200 vehicles. Billing will be computed at the rate listed below, based on the total number of POVs in storage on the last day of the month. Vehicles stored for 1-15 days will be billed at half the monthly rate listed below. Vehicles stored for over 15 days will be billed for the entire month. Monthly billing rate: 1-100 Vehicles: \$ _____ Per Month, Per Vehicle 1-250 Vehicles: \$ _____ Per Month, Per Vehicle 1-500 Vehicles: \$ _____ Per Month, Per Vehicle 1-750 Vehicles: \$ _____ Per Month, Per Vehicle 1-1000 Vehicles: \$ _____ Per Month, Per Vehicle 1-1200 Vehicles: \$ _____ Per Month, Per Vehicle Pricing Arrangement: Firm Fixed Price	1,200	Each		

Option Line Item 2002	Towing Services Regular Tow Truck Towing Services to remove/tow Personally Owned Vehicles (POVs) from Contractor's facility to other designated area, in accordance with Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
Option Line Item 2003	Towing Rollback Towing Rollback to remove/tow Personally Owned Vehicles (POVs) from Contractor's facility to another designated area, in accordance with Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
Option Line Item 2004	Towing Dolly Services Towing Dolly services to remove/tow a POV from the Contractor's facility to another designated area, in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
Option Line Item 3001	Secured storage and maintenance of Privately Owned Vehicles. Will include minimal monthly maintenance required to keep vehicles in running condition. in accordance with Performance Work Statement. Estimated Quantity: 1 to 1,200 vehicles. Billing will be computed at the rate listed below, based on the total number of POVs in storage on the last day of the month. Vehicles stored for 1-15 days will be billed at half the monthly rate listed below. Vehicles stored for over 15 days will be billed for the entire month. Monthly billing rate: 1-100 Vehicles: \$ _____ Per Month, Per Vehicle 1-250 Vehicles: \$ _____ Per Month, Per Vehicle 1-500 Vehicles: \$ _____ Per Month, Per Vehicle 1-750 Vehicles: \$ _____ Per Month, Per Vehicle 1-1000 Vehicles: \$ _____ Per Month, Per Vehicle 1-1200 Vehicles: \$ _____ Per Month, Per Vehicle Pricing Arrangement: Firm Fixed Price	1,200	Each		
Option Line Item 3002	Towing Services Regular Tow Truck Towing Services to remove/tow Personally Owned Vehicles (POVs) from Contractor's facility to other designated area, in accordance with Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
Option Line Item 3003	Towing Rollback Towing Rollback to remove/tow Personally Owned Vehicles (POVs) from Contractor's facility to another designated area, in accordance with Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		

Option Line Item 3004	Towing Dolly Services Towing Dolly services to remove/tow a POV from the Contractor's facility to another designated area, in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
Option Line Item 4001	Secured storage and maintenance of Privately Owned Vehicles. Will include minimal monthly maintenance required to keep vehicles in running condition. in accordance with Performance Work Statement. Estimated Quantity: 1 to 1,200 vehicles. Billing will be computed at the rate listed below, based on the total number of POVs in storage on the last day of the month. Vehicles stored for 1-15 days will be billed at half the monthly rate listed below. Vehicles stored for over 15 days will be billed for the entire month. Monthly billing rate: 1-100 Vehicles: \$ _____ Per Month, Per Vehicle 1-250 Vehicles: \$ _____ Per Month, Per Vehicle 1-500 Vehicles: \$ _____ Per Month, Per Vehicle 1-750 Vehicles: \$ _____ Per Month, Per Vehicle 1-1000 Vehicles: \$ _____ Per Month, Per Vehicle 1-1200 Vehicles: \$ _____ Per Month, Per Vehicle Pricing Arrangement: Firm Fixed Price	1,200	Each		
Option Line Item 4002	Towing Services Regular Tow Truck Towing Services to remove/tow Personally Owned Vehicles (POVs) from Contractor's facility to other designated area, in accordance with Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
Option Line Item 4003	Towing Rollback Towing Rollback to remove/tow Personally Owned Vehicles (POVs) from Contractor's facility to another designated area, in accordance with Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		
Option Line Item 4004	Towing Dolly Services Towing Dolly services to remove/tow a POV from the Contractor's facility to another designated area, in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10	Each		

Continuation of Description

PERFORMANCE WORK STATEMENT FOR PERSONALLY OWNED VEHICLE STORAGE in Support of CAMP LEJEUNE DISTRIBUTION MANAGEMENT OFFICE

1. BACKGROUND

Marine Corps Installations East (MCIEAST), Camp Lejeune North Carolina (CLNC), G-4, Distribution Management Office (DMO) is responsible to provide traffic management services to all service members and tenant commands in the area. Camp Lejeune Distribution Management Office (CLNC DMO) has an ongoing requirement to provide storage for personally owned vehicles (POV) for deploying service members aboard CLNC and satellite activities deploying for 90 or more days. These satellite activities include the following:

- Camp Johnson, North Carolina
- Camp Geiger, North Carolina
- Marine Corps Air Station New River, North Carolina
- Stone Bay, MCB CLNC

2. SCOPE

2.1 The Contractor shall provide all services necessary to store POVs, owned by deploying services members aboard CLNC in a safe, secure storage area within the Contractor's facility. The storage facility shall be located within 15 driving miles of CLNC Front Gate (Holcomb Boulevard).

2.2 Within 30 days of notification of contract award, the contractor's facility shall be ready to accept a maximum of 1,200 vehicles, contained amongst no more than 3 locations. The facility shall be within 15 driving miles of the CLNC front gate (Holcomb). In addition, the Contractor shall provide towing services and minor maintenance of the vehicle, in accordance with the requirements set forth in this performance work statement.

2.3 The Contractor shall provide personnel that demonstrate integrity and professionalism and comply with all aspects of this PWS.

2.4 The 15-mile limit states the Government's minimum needs. Past experience with a more distant storage location indicates that an unacceptable number of service members will not use a more distant facility. The delay and costs of private and public transportation to the more distant location proved to be a deterrent.

2.5 The period of performance for services rendered within this contract is stated below. The option periods may be exercised at the discretion of the Government per Federal Acquisition Regulation (FAR) clause 52.217-9 Option to Extend the Term of the Contract.

Base Year:	01 June 2026 - 31 May 2027
Option Year 1:	01 June 2027 - 31 May 2028
Option Year 2:	01 June 2028 - 31 May 2029
Option Year 3:	01 June 2029 - 31 May 2030
Option Year 4:	01 June 2030 - 31 May 2031

CONTRACTOR'S UNAUTHORIZED WORK PERFORMANCE. The Contractor shall not perform work that deviates from contract requirements and specifications. The COR is not authorized to direct the Contractor or take any actions that would change the contract or commit the Government in any way. If the Contractor deviates from contract requirements and specifications without approval of the **Contract Administrator** and/or the **Contacting Officer**, such deviation shall be at the risk of the Contractor and any cost related thereto shall be borne by the Contractor.

3. POINTS OF CONTACT

3.1. The Contractor shall provide points of contact (POC) for issues concerning POV secured storage. At a minimum, names, business addresses, phone numbers, and normal hours of operation are required. In addition, the Contractor shall provide POC (names, phone numbers, cellular phone numbers) for after normal business hours. Both lists (normal operation POC and after hours POC) shall be provided to the COR/authorized DMO personnel and Contract Administrator.

4. HOURS OF OPERATIONS

4.1. The Contractor shall provide secured storage facility services, 24 hours per day, 7 days per week, throughout the contract period of performance. Space shall be available within 24 hours of notice. Normal hours of operation, for the Contractor to accept, or release POVs, are 8:00 AM through 5:00 PM, Monday through Friday; however, emergency/contingency issues may require the Contractor to inspect/accept or inspect / release a POV after normal hours of operation, on a weekend, or holiday at no additional cost to the Government. In the event of an emergency / contingency situation, DMO will provide the Contractor with as much advance notification as possible, that a POV(s) is to be stored or released. The Contractor shall provide a POC and phone number for emergency / contingency POV storage requests.

5. INDEMNITY

5.1. The Contractor hereby agrees to indemnify and hold harmless the United States of America and its agents from any suits, fines, actions, claims, debts, demands, judgments, liabilities, costs and expenses, including but not limited to attorney's fees or court costs, which the United States of America and its agents may become obligated to defend and/or pay, (i) as a result of ground or water pollution, sustained or suffered because of or by reason of any action or inaction by Contractor, his agents, servants, and employees, in connection with Contractor's performance under this contract, or (ii) as a result of any loss of or damage to property or injury to or death of any person whatsoever, sustained or suffered because of or by reason of any action or inaction by Contractor, his agents, servants, and employees, in connection with Contractor's performance under this contract, or (iii) as a result of alleged pollution, damage, or injury, sustained or suffered because of or by reason of any action or inaction by Contractor, his agents, servants, and employees, in connection with Contractor's performance under this contract.

6. KEY CONTROL

6.1 The Contractor shall establish and implement methods of ensuring all keys for each member's vehicle, or the Government representative assigned to the vehicle(s), are not lost or misplaced and are not used by unauthorized personnel. At a minimum, the Contractor shall tag, number, and maintain a key log. All vehicle keys shall be kept in a locked cabinet. Only the minimum number of contractor personnel, necessary to meet contract requirements, shall have key access. The Contractor shall provide, the COR, a list of all personnel authorized access to the storage facility, vehicle keys, and authorized to take actions in accordance with this PWS.

7. SERVICES TO PERFORM

The Contractor will perform the following and provide the associated deliverables.

7.1. The Contractor shall provide all required services to receive, store, and maintain POVs, in a safe, secure condition, to include all-battery electric vehicles (EVs) and plug-in hybrid electric vehicles (PHEVs). Prices for storage shall include all maintenance and insurance as required in this section. Storage services shall be provided 24 hours per day, 7 days per week. Space shall be available within 24 hours / one government business day (GBD) of notice. For vehicle turn in and pick up, normal hours of operation shall be between 8:00 AM and 5:00 PM, Monday through Friday. Real world requirements, i.e., emergency/contingency situations, may require the Contractor to accept or release POVs on a weekend, holiday or after-hour basis. The COR, authorized DMO personnel, or the Contracting Officer, prior to work performance, will first approve weekend, after-hour, or holiday service. Contractor shall provide a POC and phone number for emergency (after-hour, weekend, holiday) receipt or release requests. In certain cases, the Government may have a need to remove vehicles from the Contractor's facility (i.e., in the case of a deceased member, etc.) and may require the vehicle be towed to lot 201 aboard CLNC or other designated area. Upon notification from the COR or authorized DMO personnel, the Contractor shall provide these "towing services" at the price set forth in this contract.

7.2. **SAFETY / SECURITY REQUIREMENTS FOR STORAGE AREA.** To ensure the vehicles are stored in a safe, secure condition, the storage area(s) shall have, as a minimum, the following features:

- a. Minimum 8-foot-high fence around the entire storage area.

- b. Location(s) shall contain sufficient light to deter intrusion.
- c. 24-hour video surveillance monitoring and recording (shall retain for 30 days).
- d. Gravel or paved area with adequate runoff capacity to prevent flooding and/or puddles of standing water.

7.3. **INSURANCE.** The Contractor shall carry insurance to cover the cost for replacement or repair of vehicles lost, stolen, or damaged through criminal acts or negligence. This is to preclude the Government from being held liable for claims generated from the above. The Contractor shall be liable up to the initial \$30,000 of loss and damage per incident, per vehicle as stated in Section I, FAR Clause 52.228-10 Vehicular and General Public Liability Insurance. The Contractor shall notify the COR of any such incident no later than one GBD after the damage, theft, criminal act, or negligence.

7.4. The Contractor shall provide "on-site expedited settlement" (seven (7) days) for loss and damage claims up to and including \$500.00. The service member will obtain a written estimate from his/her insurance claims adjuster or a reputable third party. If the claim is denied by the Contractor, the service member and Contractor will present a written statement of facts and the written estimate to the COR and Director, DMO, who will make the final decision on the claim. If DMO finds in favor of the service member, they will place a written demand on the Contractor. If DMO finds in favor of the Contractor, the service member will be notified in writing, by DMO, that the damage was not due to negligence by the Contractor.

7.5. The Contractor shall provide "expedited" (14 day) settlement for loss and damage claims from \$500.01 through (but not to exceed) \$1000.00. The service member will obtain a written estimate from his/her insurance claims adjuster or a reputable third party. If the claim is denied by the Contractor, the service member and Contractor will present a written statement of facts and the written estimate to the Distribution Management Officer who will make the final decision on the claim. If DMO finds in favor of the service member, they will place a written demand on the Contractor. If DMO finds in favor of the Contractor, the service member will be notified in writing, by DMO, that the damage was not due to negligence by the Contractor.

7.6. The Contractor shall provide "secured storage" for each vehicle.

7.7. The Contractor shall maintain records of transactions with the U.S. Government, and, upon request, make such records available to properly designated representative within a reasonable period of time.

7.8. The Contractor shall have the ability to charge Electric Vehicles (EV) and Plug-in Hybrid Electric Vehicles (PHEV) at the storage facility. The Contractor shall follow manufacturer guidance on charging EVs and PHEVs and keep vehicles at full charge during storage.

7.9. The Contractor shall follow the manufacturer's recommendation for maintaining EVs and PHEVs during periods of storage.

*Note: The Contractor shall not be responsible for replacing lithium-ion EV/PHEV batteries when the Contractor is not at fault for the EV/PHEV battery's failure.

7.10. When services are required for POV storage, DMO authorized personnel will make contact with the Contractor, via email, within one to two GBDs upon receipt for requested service. DMO will prepare the necessary paperwork (below) and forward, via email, to the Contractor within one GBD of notification. The Contractor shall acknowledge receipt of requested services within 24 hours of delivery. Authorized DMO will send over the following paperwork to the Contractor for storage services:

- a. DMO Letter of Authorization (DD Form 1299) (Signed by authorized DMO personnel)
- b. Roster of deploying service members

7.11. When services are requested less than one GBD, DMO personnel will contact the Contractor via telephone, then follow up with paperwork listed in 7.11, via email.

7.12. The Contractor shall receive, inspect, and accept POVs from deploying service members that have the following documents:

- a. Valid military photo ID (current/up to date).
- b. Valid state registration (current/up to date).
- c. Proof of current liability insurance coverage; and
- d. Valid Power of Attorney (if applicable)

Note: The Contractor shall not accept, for storage, any POV that does not have the above listed documents.

7.13. Contractor shall not perform work that deviates from this contract.

7.14. RECEIPT OF POV. The Contractor shall conduct a joint inspection of the POV with the member, Power of Attorney holder, or Government Representative that is appointed in writing. Any damages shall be annotated, utilizing a DD Form 788 (supplied by the Contractor), with both parties signing the inventory form (DD Form 788). One copy will be given to the member; one copy to the Distribution Management Office (DMO), and one copy will be maintained by the Contractor for a period of two (2) years. If the Contractor deems a POV ineligible for storage, it shall immediately notify the COR and the service member. POVs not in safe operating condition or with noticeable fluid leaks shall not be accepted, unless otherwise directed by the COR, DMO personnel, or Contract Administration.

Note: A DMO representative will pick up completed DD Form 788 monthly. The representative will contact the Contractor first and identify a pickup date.

7.14.1. **CONDITION.** Both the exterior and interior of the vehicle shall be free of excessive soil prior to being turned over to the Contractor. The contractor shall not accept a vehicle for storage that is determined to be excessively soiled such that an acceptance inspection cannot be conducted.

7.14.2. The Contractor shall verify the VIN# of the authorized vehicle being stored against the VIN# listed on the DD Form 788/788-1.

7.14.3. **AUTHORIZED ITEMS LEFT IN POV.** The Contractor shall ensure only these authorized items are in the vehicle when receipting: jack, lug wrench, tire iron, tire chains, first aid kit, jumper cables, warning triangle/trouble lights, one (1) spare tire, and two (2) snow tires with wheels, either mounted or not mounted. The Contractor bears the risk of liability for any unauthorized item left in the POV. Members shall ensure car alarm systems, automatic key mechanisms, or any other system that may be automatically activated, be disconnected / deactivated. The purpose of disconnecting / deactivating automatically activated systems is to ensure sensitive alarms are not set off, triggering nearby vehicle alarms to sound off and so forth. Numerous alarms triggering would result in a violation against Section 11-1 of Onslow County's Code of Ordinances states that "the creation of any unreasonably loud and disturbing noise in the county is prohibited". To avoid violating the County's noise ordinance, automatically activated systems shall be disconnected or deactivated.

7.15. **MAINTENANCE OF STORED POV.** The Contractor shall start/run each vehicle at least once every 30 days, cycle the air conditioner and heater. If the vehicle engine fails to start due to battery failure, the Contractor shall charge the battery and repeat the process. If after the battery has been charged, the engine still fails to start, the Contractor shall document the DD Form 788/788-1 and shall notify the COR or other authorized DMO personnel. Under no circumstance will any POV be used to jump-start, charge, or tow any other service member POV. The Contractor shall notify the COR, via email, when an all-battery EV or PHEV becomes inoperable while in the Contractor's custody.

7.15.1. The Contractor shall ensure the stored POV is driven no more than 0.5 miles per month unless approved by the COR and service member. The Contractor shall, every 30 days, check tire pressure, maintain proper tire pressure by adding air, to prevent flat spots on tires. If after following this procedure every 30 days, tire(s) on a vehicle do not inflate or are deteriorating, the Contractor shall document the DD Form 788/788-1 and shall notify the COR or authorized DMO personnel.

7.15.2. The Contractor shall maintain all POVs in a locked condition, except when performing the tasks cited in paragraphs 7.15 and 7.15.1.

7.15.3. The Contractor shall annotate unusual maintenance conditions (i.e., leaks, dead batteries, etc.) on the DD Form 788/788-1 and report them to the COR or authorized DMO personnel.

7.15.4. The Contractor shall be authorized to move vehicles only if necessary for storage purposes (i.e., if a vehicle must be moved to allow the release of another stored vehicle; however, any damages resulting from this movement shall be the Contractor's responsibility. The Contractor shall not take any vehicle off the Contractor furnished premises unless instructed by the COR or authorized DMO personnel.

7.16. RELEASE OF STORED VEHICLES. When DMO is contacted for a POV release, they will contact the Contractor, either by email or telephone, to advise of the upcoming release. This advance notification is required for the Contractor to have time to prepare the vehicle for release. The Contractor shall release vehicles within two GBDs days of notification or release date indicated on DD1299. DMO and the Contractor will coordinate the release date. After coordination, DMO will send to the Contractor within one GBD, via email, the Letter of Authorization (DD Form 1299) authorizing the release and a roster of returning (deployed) service members.

7.16.1. The Contractor shall release stored POVs, to the military member, that have the following documents:

- a. Valid military Photo ID
- b. Proof of current liability insurance coverage
- c. Valid Power of Attorney (if applicable)

7.16.2. The Contractor shall provide battery charging and tire inflation services for the military member, Government representative, or Power of Attorney at the time of POV pickup.

7.16.3. The Contractor shall ensure the POV is clean and washed prior to releasing the POV to the military member, Government representative, or Power of Attorney. If the Contractor is unable to clean and wash any POV prior to releasing, they are to notify the COR or DMO personnel.

7.16.4. The Contractor shall conduct a joint vehicle inspection with the member, Power of Attorney holder, or Government representative that is appointed in writing. Any damages shall be annotated with both parties signing the inventory form (DD 788). One Copy shall be given to the member; one copy to the Distribution Management Office (DMO), and one copy shall be maintained by the Contractor for a period of two (2) years. The Contractor shall verify the VIN#, of the authorized vehicle being stored, against the VIN# listed on the DD Form 788/788-1. In the case of a death of a military member, the Contractor will release the vehicle to a moving company, verified Next of Kin (NOK), or tow the POV to a designated area, in coordination with an official from DMO.

7.17. TOWING. In certain cases, the Government may have a need to remove vehicles from the Contractor's facility, i.e., in the case of a deceased member, and may require the vehicle be towed to lot 201 aboard CLNC or some other designated area. Upon notification from authorized DMO personnel, the Contractor shall provide these "towing services" at the price set forth in the contract.

7.17.1. ROLLBACK. Rollback towing services for POVs of deceased cases: Towing services to pick up and tow a POV from a designated location to DMO lot 201 aboard CLNC. Towing services to be within a 50-mile radius of CLNC as designated by DMO. Price at \$3.00 per mile for 0-25 miles and \$4.00 per mile for 26-50 miles.

7.18. REPORTING REQUIREMENTS. The Contractor shall provide a monthly report to DMO COR, via email, of all vehicles in storage at the Contractor's facility. The report shall contain the following data:

- a. POV Owner's name & rank;
- b. CD number assigned by DMO;
- c. Date POV received at storage facility; and
- d. Date POV was released from storage facility (if applicable)

The report shall be provided to the DMO COR no later than the 5th calendar day of each month and shall account for the preceding 30-day period.

7.19. The Contractor shall submit the inventory data format for review and approval by the Contract Administrator within 10 calendar days after receipt of written contract award.

7.20. The Contractor may request and shall receive approval, from the COR or DMO personnel, to participate in CLNC DMO unit briefs. These briefs are held by CLNC DMO with unit representatives prior to submission of required documentation requesting storage services for deploying service members. Location of unit briefs vary by location and will be identified by CLNC DMO personnel.

8. DEFINITIONS

8.1. **ACCEPTANCE INSPECTION.** An inspection performed by both the Contractor and member, Power of Attorney, or Government Representative, on all vehicles and equipment prior to being placed in the Contractor's secured storage facility, as required by the Government. This inspection verifies the overall condition of the vehicle. Discrepancies shall be documented, on the designated form, prior to placing the vehicle in storage.

8.2. **ACCIDENT REPAIRS.** Repairs required as a result of collision while in Contractor possession.

8.3. **AUTHORIZED PERSONNEL.** Persons granted the authority to have access to certain areas or to perform specific functions required for contract performance.

8.4. **CONTRACT ADMINISTRATOR.** The person who is responsible for administering contract terms and conditions per the Federal Acquisition Regulations (FAR), Department of Defense Federal Acquisition Regulations Supplement (DFARS), Marine Corps Acquisition Procedures Supplement (MAPS), and other implementing regulations.

8.5. **CONTRACTING OFFICER.** Any person who, either by virtue of position or by appointment per the FAR, or supplements thereto, is currently a Contracting Officer with the authority to enter into and administer contracts and make related determination and findings with respect thereto, or with any part of such authority.

8.6. **CONTRACTING OFFICER'S REPRESENTATIVE (COR).** A person appointed as the Contracting Officer's Representative for the surveillance and verification of required services.

- 8.7. **CRIMINAL ACT.** A violation of criminal laws of the United States, a state, or unit of local Government.
- 8.8. **DISABLED VEHICLE.** A damaged, worn out, or malfunctioning vehicle.
- 8.9. **INCIDENT.** An occasion where damage or loss to a stored POV occurs.
- 8.10. **MONTH.** A month equals 30 days, for contract purposes.
- 8.11. **MOTOR VEHICLES.** An item of equipment, mounted on wheels and designed for highway and/or land use, that derives power from a self-contained power unit.
- 8.12. **NEGLIGENCE.** The omission or neglect of reasonable precaution, care, or action on the part of the Contractor or his/her personnel.
- 8.13. **SECURED STORAGE.** A place where an item(s) is kept from risk of theft, damage, or loss. Includes a requirement for 8-foot high (as a minimum) security fenced, lighted location with sufficient light to visually detect intrusion, 24-hour video surveillance monitoring and recording, with a gravel or paved elevated storage area to prevent damage due to minor flooding.
- 8.14. **CD NUMBER.** Car Deployment Number, provided by DMO.
- 8.15. **Privately Owned Vehicle (POV).** A motor vehicle owned or leased by a customer for personal use. The term "POV" does not include commercial vehicles, motorcycles, motorized recreational vehicles, or non-motorized trailers.
- *NOTE: POVs include all-battery electric vehicles/plug-in hybrid electric vehicles (EV/PHEV).*
- 9. PERIOD AND PLACE OF PERFORMANCE**
- 9.1 **Period of Performance:** The contract will have one twelve (12) month base period of performance, followed by four (4) twelve (12) month option periods.
- 9.2. The following are observed federal holidays:

(a) New Year's Day

1 January

(b)	Martin Luther King Day	Third Monday in January
(c)	Presidents Day	Third Monday in February
(d)	Memorial Day	Last Monday in May
(e)	Juneteenth Day	19 June
(f)	Independence Day	4 July
(g)	Labor Day	First Monday in September
(h)	Columbus Day	Second Monday in October
(i)	Veterans Day	11 November
(j)	Thanksgiving Day	Fourth Thursday in November
(k)	Christmas Day	25 December

9.3. In the event of a base closure due to national emergencies, inclement weather conditions (snow and ice storms, hurricanes, tornadoes, etc.) and other emergency situations, the contractor must contact the Contracting Officer Representative (COR) immediately for instructions.

*Note: When a holiday falls on a Sunday, the following Monday will be observed as a legal holiday by U.S. Government agencies. When a holiday falls on a Saturday, the preceding Friday is observed as a holiday by U. S. Government agencies.

10. CONTRACTING OFFICER'S REPRESENTATIVE (COR)

10.1. DMO's COR Point of Contact (POC): will be provided at time of award.

10.2. COR RESPONSIBILITIES. Performs surveillance and inspection of services required under this contract; determines the adequacy of Contractor performance per contract specifications; acts as the Government's representative at the work site; ensures compliance with contract performance requirements; and advises the Contract Administrator of any factors that may cause work performance delays. The COR cannot authorize deviations from contract requirements and specifications. The Contracting Officer will appoint a COR by position title or name for the below activity to help him in the discharge of his responsibilities when he is unable to be directly in touch with the contract performance.

10.3. DOCUMENTS AND REPORTS REQUIRED FROM COR

10.3.1. INVOICE. Quarterly delivery/task order will be issued for an estimated quantity of vehicles. Within five (5) calendar days after the end of each month, the Contractor shall submit a preliminary invoice to DMO and the Contract Administrator, that lists the quantity of vehicles stored and the appropriate charges. The preliminary invoice shall be submitted simultaneously with the monthly report and be based on information provided on the report as listed in the contract. Within two (2) GBDs of receipt of the preliminary invoice, DMO COR will certify the preliminary invoice and forward it along with a copy of the monthly report to the Contract Administrator. The certified copy of the preliminary invoice will also serve as a DD250 "Report of

Product/Services Received". Therefore, the COR shall state on the invoice that "all products/services were received and accepted for (state period of performance, i.e., 01 Jun 2006 - 30 Jun 2006), that it is a partial acceptance against the contract, date the invoice and sign it. The purchase request modification will be utilized to modify the delivery/task order to accurately reflect the number of vehicles stored for that month. A copy of the delivery/task order modification will be sent via email to the Contractor. After the Contractor has received the delivery/task order modification, the WAWF invoice shall be submitted for payment. Once a correct WAWF invoice is received, DMO will have seven (7) workdays to certify the invoice and forward it to DFAS for payment. Deviation from this procedure will delay timely payment.

10.3.2. UNACCEPTABLE PERFORMANCE. When performance does not meet specifications and requirements of this contract, written (memo for the record or email) documentation will be furnished explaining how performance is considered to be unacceptable. This documentation should state what specification(s) the Contractor is not performing (reference contract paragraph number(s), date, and time observed) and submit to the Contract Administrator within two (2) GBDs of each occurrence. The Contracting Officer will promptly provide written notification of discrepancies on a monthly basis, or immediately if the situation significantly affects the well-being of the project. The Contractor will be given the opportunity to respond, in writing, to each discrepancy. The Contractor shall provide a written response to the cause and the corrective action to prevent recurrence within 15 working days after receipt of Contracting Officer's notification. The Contractor shall cite specific quality assurance program procedures or new procedures instituted to prevent recurrence. The Contracting Officer will then take appropriate action with the contractor to remedy the substandard performance. When the performance is below the Acceptable Quality Levels (AQL) standard, the Government may implement increased surveillance and/or Contractor reporting, as well as documentation in the Contractor's Performance Assessment Reporting System (CPARS) or begin termination for default procedures.

10.3.3. GOVERNMENT QUALITY ASSURANCE. The COR or designated representative will evaluate the Contractor's performance to assure contract requirements are met by the Contractor.

11. DELIVERIES OR PERFORMANCE

11.1. Services shall be provided according to the specifications and requirements as defined in the contract.

11.2. MEETINGS. When problems, or other issues, arise that may affect contract performance, the Contractor and the Contracting Officer, or his designated representative, shall meet in an effort to mutually resolve the issue. Meetings shall be held as often as necessary to ensure requirements of the contract are being met.

11.3. POINT OF CONTACT (POC) LIST. The Contractor shall provide the Contracting Department and DMO a POC and phone number for emergency (after-hour, weekend, holiday) receipt/release requests. In addition, the Contractor shall ensure personnel have been provided the list of authorized Government contacts (names and phone numbers) provided by the Government to address any questions/issues that arise.

11.4. DOCUMENTS AND REPORTS REQUIRED. Contractor shall furnish documents and reports as required in the contract.

11.5. **LICENSES, PERMITS AND APPROVALS.** The Contractor performing this contract shall possess all environmental, construction, and any other licenses, permits and approvals required for operation of the storage facility and to make improvements so the facility will meet the minimum security and storage requirements as stated in paragraph 9.2.

11.6. **CERTIFICATION OF MINIMUM INSURANCE COVERAGE.** The successful offeror shall furnish to the Contract Administrator a certificate of insurance as evidence of the existence of insurance coverage not less than the amounts specified in this contract. The initial certificate document shall be provided to the Government with offerors quote prior to the offer due date specified in block 8 of this solicitation. All certificate changes shall be submitted to the Contract Administrator within 5 workdays after changes occur.

11.7. **LIST OF AUTHORIZED PERSONNEL FOR KEY CONTROL.** The Contractor shall furnish to the Contract Administrator (See Section G, Paragraph G.2(b) a list of all personnel authorized access to vehicle keys. Only the minimum number of contractor personnel, necessary to meet contract requirements, shall have key access.

11.8. **MONTHLY REPORT OF VEHICLES ON HAND.** A monthly report of all vehicles on hand at the facility shall be provided to the COR no later than the 5th calendar day of each month for the preceding 30-day period as outlined in this contract. The Contractor shall submit this inventory data format for review and approval by the Contract Administrator within 10 calendar days after receipt of written contract award.

12. INVOICING INSTRUCTIONS

12.1. **BILLING PERIOD.** The billing period for contract and pay purposes shall begin the first day and end the last day of the month for each item shown in this contract.

12.2. **INVOICING INSTRUCTIONS.** Contractor shall invoice as reflected within this contract as follows:

When vehicles are brought in or removed from the facility/storage area, and the vehicles will be there for 1 to 15 days out of the month, the Contractor shall invoice at only half the established monthly rate for the aggregate quantity for the month. If vehicles are brought in or removed from the facility/storage area, and the vehicles were there for 16 days or more out of the month, the Contractor shall invoice at the established full monthly rate for the aggregate quantity involved.

13. BASE ACCESS

13.1. Contractor must be registered in the Defense Biometrics Identification System (DBIDS). It is the Contractors responsibility to ensure all their employees and or subcontractors are properly registered within DBIDS. To gain access to the installation, the contractor will require their personnel to have a REAL ID as the primary credential and submit a request for DBIDS access.

13.1.1. Contractors, and/or delivery drivers, must have in their possession: the contract number, delivery /service address, and sponsor's contact information in order to gain initial access to the base.

(The sponsor for this requirement will be provided at the time of award.)

Sponsor:

Phone Number:

Email:

13.1.2. For updated information and proper documentation to gain access to the installation, the contractor is required to visit the installation website at: <https://www.lejeune.marines.mil/Base-Access/>.

13.2. When the contractor is approved for access, they will receive either a DBIDS credential or temporary pass, depending upon the length of time they require access. A DBIDS credential is issued to individuals requiring access for 61 days or more. A temporary pass is issued to individuals requiring access for 60 days or less.

13.3. Contractor personnel will report to the Contractor Vetting Office to confirm their access requirements, undergo a background check, and receive their pass.

13.3.1. Contractor Common Access Card (CAC) Eligibility: Contractor personnel authorized CACs are exempt from DBIDS enrollment.

13.4. If you have additional questions regarding base access, Contractor CACs, or DBIDS requirements, contact the Contractor Vetting Office (CVO). The CVO is in Bldg. 818 adjacent to the Camp Lejeune Main Gate on Holcomb Blvd, just off NC Highway 24. The CVO is open Monday through Friday from 6 a.m. to 2 p. m. and closed on weekends and holidays.

Contractor Vetting Office - Appointments: 910-451-8558

Contractor Vetting Office - Questions: 910-451-3220

Vetting Office Email: lejeunecontractorvetting@usmc.mil

DBIDS email: <https://dbids-global-enroll.dmdc.mil/preenrollui/#/>

PLEASE NOTE: Individuals with active warrants may be subject to arrest on the spot.

****The Government will not be responsible for any contractor access delays. Delays that may result from inadequate planning are strictly the responsibility of the Contractor.****

Requirements

The purpose of this requirement is to provide Personally Owned Vehicle (POV) storage (up to 1,200 vehicles) , in support of deployed service members aboard Camp Lejeune, North Carolina. It will include a performance period of five years (inclusive of one 12 month base year and four 12 month option years).

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 Days Acceptance: 7 Days DoDAAC: MMP100 CountryCode: USA DISTRIBUTION MANAGEMENT OFFICE BLDG 1012,O STREET BAY#8, M/F MMP100 MCIEAST-MCB (ATTN: SUPO) CAMP LEJEUNE, NC 28547-2503 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
0002	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA DISTRIBUTION MANAGEMENT OFFICE BLDG 1012,O STREET BAY#8, M/F MMP100 MCIEAST-MCB (ATTN: SUPO) CAMP LEJEUNE, NC 28547-2503 UNITED STATES Robert Clerkin, Distribution Management Office Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
0003	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
0004	Inspection and Acceptance Location

	Both Destination Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 Days Acceptance: 7 Days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 1002	Inspection and Acceptance Location Both Other Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Office Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 1003	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES

	Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 1004	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 Days Acceptance: 7 Days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 2002	Inspection and Acceptance Location Both Other Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Office Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 2003	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 days Acceptance: 7 days

	DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 2004	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 Days Acceptance: 7 Days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 3002	Inspection and Acceptance Location Both Other Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Office Email: robert.clerkin@usmc.mil Telephone: 910-450-2642

Option Line Item 3003	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 3004	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 4001	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 Days Acceptance: 7 Days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 4002	Inspection and Acceptance Location Both Other Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL

	MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Office Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 4003	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642
Option Line Item 4004	Inspection and Acceptance Location Both Destination Instructions: Inspection: 7 days Acceptance: 7 days DoDAAC: MMP100 CountryCode: USA COMMANDING GENERAL MCIEAST-MCB (ATTN: SUPPLY OFFICER), PSC BOX 20004 BLDG 1212 CAMP LEJEUNE, NC 28542-0004 UNITED STATES Robert Clerkin, Distribution Management Email: robert.clerkin@usmc.mil Telephone: 910-450-2642

Continuation of Deliveries or Performance

Overall Contract Delivery Period

Period of Performance
From 01 Jun 2026 to 31 May 2031

The ordering period above may include unexercised options

Contractor
Destination

Line Item	Delivery Schedule	Estimated Quantity	Address and POC
0001	Period of Performance From 01 Jun 2026 To 31 May 2027	1,200 Each	
0002	Period of Performance From 01 Jun 2026 To 31 May 2027	10 Each	
0003	Period of Performance From 01 Jun 2026 To 31 May 2027	10 Each	
0004	Period of Performance From 01 Jun 2026 To 31 May 2027	10 Each	
Option Line Item 1001	Period of Performance From 01 Jun 2027 To 31 May 2028	1,200 Each	
Option Line Item 1002	Period of Performance From 01 Jun 2027 To 31 May 2028	10 Each	
Option Line Item 1003	Period of Performance From 01 Jun 2027 To 31 May 2028	10 Each	
	Period of Performance From	10 Each	

Option Line Item 1004	01 Jun 2027 To 31 May 2028		
Option Line Item 2001	Period of Performance From 01 Jun 2028 To 31 May 2029	1,200 Each	
Option Line Item 2002	Period of Performance From 01 Jun 2028 To 31 May 2029	10 Each	
Option Line Item 2003	Period of Performance From 01 Jun 2028 To 31 May 2029	10 Each	
Option Line Item 2004	Period of Performance From 01 Jun 2028 To 31 May 2029	10 Each	
Option Line Item 3001	Period of Performance From 01 Jun 2029 To 31 May 2030	1,200 Each	
Option Line Item 3002	Period of Performance From 01 Jun 2029 To 31 May 2030	10 Each	
Option Line Item 3003	Period of Performance From 01 Jun 2029 To 31 May 2030	10 Each	
Option Line Item 3004	Period of Performance From 01 Jun 2029 To 31 May 2030	10 Each	
Option Line Item 4001	Period of Performance From 01 Jun 2030 To 31 May 2031	1,200 Each	
Option Line Item 4002	Period of Performance From 01 Jun 2030	10 Each	

	To 31 May 2031		
Option Line Item 4003	Period of Performance From 01 Jun 2030 To 31 May 2031	10 Each	
Option Line Item 4004	Period of Performance From 01 Jun 2030 To 31 May 2031	10 Each	

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.203-3	Gratuities.	Apr 1984		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	Feb 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	Feb 2026		
52.219-33	Nonmanufacturer Rule. (Deviation 2026-O0038)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	Feb 2026		
52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	Feb 2026		
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	Feb 2026		
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (Deviation 2026-O0038)	Feb 2026		
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	Feb 2026		
52.224-3	Privacy Training.	Jan 2017		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.219-16	Liquidated Damages-Subcontracting Plan. (Deviation 2026-O0038)	Feb 2026		
52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment. (Deviation 2026-O0038)	Feb 2026		
52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners. (Deviation 2026-O0038)	Feb 2026		
52.225-1	Buy American-Supplies (Deviation 2026-O0038)	Feb 2026		
52.225-3	Buy American-Free Trade Agreements-Israeli Trade Act. (Deviation 2026-O0038)	Feb 2026		
52.225-5	Trade Agreements.	Nov 2023		
52.225-26	Contractors Performing Private Security Functions Outside the United States.	Oct 2016		
52.232-29	Terms for Financing of Purchases of Commercial Products and Commercial Services.	Nov 2021		
52.232-30	Installment Payments for Commercial Products and Commercial Services.	Nov 2021		
52.232-36	Payment by Third Party. (Deviation 2026-O0038)	Feb 2026		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		

252.243-7002	Requests for Equitable Adjustment.	Dec 2022
252.247-7023	Transportation of Supplies by Sea.	Oct 2024
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023
252.219-7000	Advancing Small Business Growth.	Jun 2023
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023
252.204-7022	Expediting Contract Closeout.	May 2021
252.227-7015	Technical Data-Commercial Products and Commercial Services.	Jan 2025
252.227-7037	Validation of Asserted Restrictions on Technical Data.	Jan 2025
252.219-7004	Small Business Subcontracting Plan (Test Program).	Dec 2022
252.203-7003	Agency Office of the Inspector General.	Aug 2019

FAR Clauses Incorporated by Full Text

52.219-14 Limitations on Subcontracting. (Deviation 2026-O0038) (Feb 2026)

LIMITATIONS ON SUBCONTRACTING (FEB 2026) (DEVIATION 2026-O0038)

- (a) This clause does not apply to the unrestricted portion of a partial set-aside.
- (b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-
 - (1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and
 - (2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.
- (c) *Applicability*. This clause applies only to-
 - (1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);
 - (2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);
 - (3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;
 - (4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;
 - (5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and
 - (6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.
- (d) *Independent contractors*. An independent contractor shall be considered a subcontractor.
- (e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-
 - (1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;
 - (2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;
 - (3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or
 - (4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

☐ By the end of the base term of the contract and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation 2026-O0038) (Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION 2026-O0038)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	_____
Issue By DoDAAC	_____
Admin DoDAAC	_____

Inspect By DoDAAC	_____
Ship To Code	_____
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: 1 *Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)* for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.222-3	Convict Labor. (Deviation 2026-O0038)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.202-1	Definitions.	Jun 2020		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.232-17	Interest.	May 2014		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.233-1	Disputes. (Deviation 2026-O0038) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.242-13	Bankruptcy.	Jul 1995		
52.247-34	F.o.b. Destination.	Jan 1991		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	Jun 2020	Alternate I	Nov 2021
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.204-91	Contractor Identification. (Deviation 2026-O0038)	Feb 2026		
52.219-9	Small Business Subcontracting Plan. (Deviation 2026-O0038)	Feb 2026		
52.232-90	Fast Payment Procedure. (Deviation 2026-O0038)	Feb 2026		
52.240-92	Security Requirements. (Deviation 2026-O0038)	Feb 2026		
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.225-7036	Buy American-Free Trade Agreements--Balance of Payments Program.	Feb 2024		
252.217-7016	Plant Protection.	Dec 1991		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.225-7002	Qualifying Country Sources as Subcontractors.	Mar 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.219-7003	Small Business Subcontracting Plan (DoD Contracts).	Dec 2019		
252.223-7009	Prohibition of Procurement of Fluorinated Aqueous Film-Forming Foam Fire-Fighting Agent for Use on Military Installations.	Feb 2024		

FAR Clauses Incorporated by Full Text

52.216-18 Ordering. (Aug 2020)

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 1 June 2026 through 31 May 2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations.

(Oct 1995)

Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$1.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$3,000,000.00;

(2) Any order for a combination of items in excess of \$3,000,000.00; or

(3) A series of orders from the same ordering office within 1 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 1 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity. (Deviation 2026-O0038)

(Feb 2026)

Indefinite Quantity (Feb 2026) (Deviation 2026-O0038)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 31 May 2031.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 Days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 Days days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of clause)

52.232-34 Payment by Electronic Funds Transfer-Other than System for Award Management.

(Jul 2013)

Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013)

(a) Method of payment.

(1) All payments by the Government under this contract shall be made by electronic funds transfer (EFT) except as provided in paragraph (a)(2) of this clause. As used in this clause, the term "EFT" refers to the funds transfer and may also include the payment information transfer.

(2) In the event the Government is unable to release one or more payments by EFT, the Contractor agrees to either-

(i) Accept payment by check or some other mutually agreeable method of payment; or

(ii) Request the Government to extend payment due dates until such time as the Government makes payment by EFT (but see paragraph (d) of this clause).

(b) Mandatory submission of Contractor's EFT information.

(1) The Contractor is required to provide the Government with the information required to make payment by EFT (see paragraph (j) of this clause). The Contractor shall provide this information directly to the office designated in this contract to receive that information (hereafter: "designated office") by _____ [the Contracting Officer shall insert date, days after award, days before first request, the date specified for receipt of offers if the provision at 52.232-38 is utilized, or "concurrent with first request" as prescribed by the head of the agency; if not prescribed, insert "no later than 15 days prior to submission of the first request for payment"]. If not otherwise specified in this contract, the payment office is the designated office for receipt of the Contractor's EFT information. If more than one designated office is named for the contract, the Contractor shall provide a separate notice to each office. In the event that the EFT information changes, the Contractor shall be responsible for providing the updated information to the designated office(s).

(2) If the Contractor provides EFT information applicable to multiple contracts, the Contractor shall specifically state the applicability of this EFT information in terms acceptable to the designated office. However, EFT information supplied to a designated office shall be applicable only to contracts that identify that designated office as the office to receive EFT information for that contract.

(c) *Mechanisms for EFT payment.* The Government may make payment by EFT through either the Automated Clearing House (ACH) network, subject to the rules of the National Automated Clearing House Association, or the Fedwire Transfer System. The rules governing Federal payments through the ACH are contained in 31 CFR part 210.

(d) Suspension of payment.

(1) The Government is not required to make any payment under this contract until after receipt, by the designated office, of the correct EFT payment information from the Contractor. Until receipt of the correct EFT information, any invoice or contract financing request shall be deemed not to be a proper invoice for the purpose of prompt payment under this contract. The prompt payment terms of the contract regarding notice of an improper invoice and delays in accrual of interest penalties apply.

(2) If the EFT information changes after submission of correct EFT information, the Government shall begin using the changed EFT information no later than 30 days after its receipt by the designated office to the extent payment is made by EFT. However, the Contractor may request that no further payments be made until the updated EFT information is implemented by the payment office. If such suspension would result in a late payment under the prompt payment terms of this contract, the Contractor's request for suspension shall extend the due date for payment by the number of days of the suspension.

(c) Liability for uncompleted or erroneous transfers.

(1) If an uncompleted or erroneous transfer occurs because the Government used the Contractor's EFT information incorrectly, the Government remains responsible for-

(i) Making a correct payment;

(ii) Paying any prompt payment penalty due; and

(iii) Recovering any erroneously directed funds.

(2) If an uncompleted or erroneous transfer occurs because the Contractor's EFT information was incorrect, or was revised within 30 days of Government release of the EFT payment transaction instruction to the Federal Reserve System, and-

(i) If the funds are no longer under the control of the payment office, the Government is deemed to have made payment and the Contractor is responsible for recovery of any erroneously directed funds; or

(ii) If the funds remain under the control of the payment office, the Government shall not make payment and the provisions of paragraph (d) shall apply.

(f) *EFT and prompt payment.* A payment shall be deemed to have been made in a timely manner in accordance with the prompt payment terms of this contract if, in the EFT payment transaction instruction released to the Federal Reserve System, the date specified for settlement of the payment is on or before the prompt payment due date, provided the specified payment date is a valid date under the rules of the Federal Reserve System.

(g) *EFT and assignment of claims.* If the Contractor assigns the proceeds of this contract as provided for in the assignment of claims terms of this contract, the Contractor shall require as a condition of any such assignment, that the assignee shall provide the EFT information required by paragraph (j) of this clause to the designated office, and shall be paid by EFT in accordance with the terms of this clause. In all respects, the requirements of this clause shall apply to the assignee as if it were the Contractor. EFT information that shows the ultimate recipient of the transfer to be other than the Contractor, in the absence of a proper assignment of claims acceptable to the Government, is incorrect EFT information within the meaning of paragraph (d) of this clause.

(h) *Liability for change of EFT information by financial agent.* The Government is not liable for errors resulting from changes to EFT information provided by the Contractor's financial agent.

(i) *Payment information.* The payment or disbursing office shall forward to the Contractor available payment information that is suitable for transmission as of the date of release of the EFT instruction to the Federal Reserve System. The Government may request the Contractor to designate a desired format and method(s) for delivery of payment information from a list of formats and methods the payment office is capable of executing. However, the Government does not guarantee that any particular format or method of delivery is available at any particular payment office and retains the latitude to use the format and delivery method most convenient to the Government. If the Government makes payment by check in accordance with paragraph (a) of this clause, the Government shall mail the payment information to the remittance address in the contract.

(j) *EFT information.* The Contractor shall provide the following information to the designated office. The Contractor may supply this data for this or multiple contracts (see paragraph (b) of this clause). The Contractor shall designate a single financial agent per contract capable of receiving and processing the EFT information using the EFT methods described in paragraph (c) of this clause.

(1) The contract number (or other procurement identification number).

(2) The Contractor's name and remittance address, as stated in the contract(s).

(3) The signature (manual or electronic, as appropriate), title, and telephone number of the Contractor official authorized to provide this information.

(4) The name, address, and 9-digit Routing Transit Number of the Contractor's financial agent.

(5) The Contractor's account number and the type of account (checking, saving, or lockbox).

(6) If applicable, the Fedwire Transfer System telegraphic abbreviation of the Contractor's financial agent.

(7) If applicable, the Contractor shall also provide the name, address, telegraphic abbreviation, and 9-digit Routing Transit Number of the correspondent financial institution receiving the wire transfer payment if the Contractor's financial agent is not directly on-line to the Fedwire Transfer System; and, therefore, not the receiver of the wire transfer payment.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.217-7027 Contract Definitization.

(May 2023)

CONTRACT DEFINITIZATION (MAY 2023)

(a) An Indefinite Delivery Indefinite Quantity contract is contemplated. The Contractor agrees to begin promptly negotiating with the Contracting Officer the terms of a definitive contract that will include-

- (1) All clauses required by the Federal Acquisition Regulation (FAR) on the date of execution of the undefinitized contract action;
- (2) All clauses required by law on the date of execution of the definitive contract action; and
- (3) Any other mutually agreeable clauses, terms, and conditions.

(b) The Contractor agrees to submit a firm fixed-price quote. Notwithstanding FAR 52.216-26, Payments of Allowable Costs Before Definitization, failure to meet the qualifying proposal date in the contract definitization schedule could result in the Contracting Officer withholding an amount up to 5 percent of all subsequent requests for financing until the Contracting Officer determines that a proposal is qualifying.

(c) The schedule for definitizing this contract action is as follows *[insert target date for definitization of the contract action and dates for submission of proposal, beginning of negotiations, and, if appropriate, submission of the make-or-buy and subcontracting plans and certified cost or pricing data]*:

(d) If agreement on a definitive contract action to supersede this undefinitized contract action is not reached by the target date in paragraph (c) of this clause, or within any extension of it granted by the Contracting Officer, the Contracting Officer may, with the approval of the head of the contracting activity, determine a reasonable price or fee in accordance with FAR subpart 15.4 and part 31, subject to Contractor appeal as provided in the Disputes clause. In any event, the Contractor shall proceed with completion of the contract, subject only to the Limitation of Government Liability clause.

(1) After the Contracting Officer's determination of price or fee, the contract shall be governed by-

(i) All clauses required by the FAR on the date of execution of this undefinitized contract action for either fixed-price or cost-reimbursement contracts, as determined by the Contracting Officer under this paragraph (e);

(ii) All clauses required by law as of the date of the Contracting Officer's determination; and

(iii) Any other clauses, terms, and conditions mutually agreed upon.

(2) To the extent consistent with paragraph (d)(1) of this clause, all clauses, terms, and conditions included in this undefinitized contract action shall continue in effect, except those that by their nature apply only to an undefinitized contract action.

(e) The definitive contract resulting from this undefinitized contract action will include a negotiated _____ *[insert "cost/price ceiling" or "firm-fixed price"]* in no event to exceed _____ *[insert the not-to-exceed amount]*.

(End of clause)

252.237-7019 Training for Contractor Personnel Interacting with Detainees.

(Jan 2023)

TRAINING FOR CONTRACTOR PERSONNEL INTERACTING WITH DETAINEES (JAN 2023)

(a) *Definitions.* As used in this clause-

"Combatant Commander" means the commander of a unified or specified combatant command established in accordance with 10 U.S.C. 161.

"Detainee" means a person in the custody or under the physical control of the Department of Defense on behalf of the United States Government as a result of armed conflict or other military operation by United States armed forces.

"Personnel interacting with detainees" means personnel who, in the course of their duties, are expected to interact with detainees.

(b) *Training requirement.* This clause implements Section 1092 of the National Defense Authorization Act for Fiscal Year 2005 (Pub. L. 108-375).

(1) The Combatant Commander responsible for the area where a detention or interrogation facility is located will arrange for training to be provided to contractor personnel interacting with detainees. The training will address the international obligations and laws of the United States applicable to the detention of personnel, including the Geneva Conventions. The Combatant Commander will arrange for a training receipt document to be provided to personnel who have completed the training.

(2)(i) The Contractor shall arrange for its personnel interacting with detainees to-

(A) Receive the training specified in paragraph (b)(1) of this clause-

(1) Prior to interacting with detainees, or as soon as possible if, for compelling reasons, the Contracting Officer authorizes interaction with detainees prior to receipt of such training; and

(2) Annually thereafter; and

(B) Provide a copy of the training receipt document specified in paragraph (b)(1) of this clause to the Contractor for retention.

(ii) To make these arrangements, the following points of contact apply:

_____[Contracting Officer to insert applicable point of contact information cited in PGI 237.171-3(b) (DFARS/PGI view).]

(3) The Contractor shall retain a copy of the training receipt document(s) provided in accordance with paragraphs (b)(1) and (2) of this clause until the contract is closed, or 3 years after all work required by the contract has been completed and accepted by the Government, whichever is sooner.

(c) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for commercial services, that may require subcontractor personnel to interact with detainees in the course of their duties.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

WAGE DETERMINATION

- (a) Offerors are advised that this procurement is subject to the requirements of the Service Contract Labor Standards, as amended.
- (b) The Contractor agrees to furnish the Contracting Officer with a copy of any collective bargaining agreements applicable to employees performing under this contract.
- (c) Salaries paid to employees must be in compliance with the labor category and wage determination.

21410 Warehouse Specialist \$17.05 per hour
- (d) Wage Determination **No 2015-4389 (Rev-32) dated December 3, 2025**, can be found at: www.sam.gov.

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.207-6	Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts).	Aug 2024		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.215-7007	Notice of Intent to Resolicit.	Jun 2012		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.225-7050	Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism.	Dec 2022		

FAR Clauses Incorporated by Full Text

52.209-12 Certification Regarding Tax Matters. (Oct 2025)

Certification Regarding Tax Matters (Oct 2025)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed \$7 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it

(1) Has [] filed all Federal tax returns required during the three years preceding the certification;

(2) Has not [] been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not [] , more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable.

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation.

(Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Feb 2026)

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation based on price and other factors. The following factors will be used to evaluate offers:

BASIS OF AWARD: The basis of award will be price and other factors. Quotes will be evaluated based on (1) Technical Capability, (2) Relevant, Satisfactory Past Performance, (3) Delivery, and (4) Price. This acquisition will be conducted in accordance with FAR Part 12, Acquisition of Commercial Products and Commercial Services.

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award.* A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Evaluation. The Government intends to make a single Firm Fixed-Price award to satisfy this requirement. Award will be made of the initial evaluation of offers received in response to this RFQ. Therefore, offerors are cautioned to ensure that initial offer contains best terms from a (1) Technical, (2) Past Performance (3) Delivery, and (4) Price standpoint. A mere statement of "The offeror will meet the Government's requirements" is insufficient. The offeror must demonstrate how it will meet the requirement.

The following factors will be used to evaluate offers:

1) Technical Capability: The offeror shall provide a capability statement/performance plan that demonstrates their ability to provide the required services in the solicitation. The offeror should address their experience providing this type of service, equipment supplied, and any other relevant information.

The technical offer shall separately address the following paragraphs:

a) STORAGE FACILITY/AREA. The offeror shall give an affirmative or negative response as to whether the storage facility/area will have the capacity to store up to 1,200 vehicles (cars, vans, trucks) 30 days after notification of contract award. Additionally, the offeror shall demonstrate how the facility will be able to meet the 1,200 vehicle capacity. The offeror may demonstrate this by providing either a chart of available parking or the total square footage reserved exclusively for vehicle storage.

b) LOCATION. Storage facility shall be located within 15 driving miles of the Marine Corps Base, Camp Lejeune Holcomb Gate (Holcomb Boulevard) or the Marine Corps Base, Camp Lejeune, Piney Green Gate (located at Piney Green Road and Highway 24) as stated in section 2.3 of the Performance Work Statement (PWS). The offeror shall state the location of the proposed storage facility area, that is has the capacity for storing up to 1,200 vehicles within 30 days after notification of the contract award, and that it will be available for a site visit upon Government request.

c) LICENSES, PERMITS AND APPROVALS. The offeror shall demonstrate that he/she possess all environmental, construction, and other licenses, permits and approvals required to operate the facility in accordance with Federal and State requirements.

d) SAFETY/SECURITY REQUIREMENTS FOR STORAGE AREA.

- Minimum 8 foot high fence around the entire storage area.
- Location(s) shall be lighted with sufficient light to visually detect intrusion.
- 24 hour video surveillance monitoring and recording (shall keep recording for a period of 30 days)
- Gravel or asphalt area with adequate runoff capacity to prevent flooding and/or puddles of standing water.

e) INSURANCE. As a minimum, the offeror shall meet the insurance requirements of Section 7.3 of the PWS.

- The offeror shall demonstrate that it possess insurance to cover the cost for replacement or repair of vehicles that are lost, stolen, or damaged through criminal acts or negligence.

- The offeror shall demonstrate that it shall be liable up to the initial \$30,000.00 of loss and damage per incident, per vehicle, as stated in section 7.3 of the PWS and FAR 52.228-10, Vehicular and General Public Liability Insurance.
- The offeror shall demonstrate that it will provide expedited settlement (7 days) for loss and damage claims up to and including \$500.00 as described in section 7.5 of the PWS.
- The offeror shall demonstrate that it will provide expedited settlement (14 days) settlement for loss and damage claims from \$500.01 through, but not to exceed \$1,000.00 as described in section 7.5 of the PWS.

f) MAINTENANCE OF STORED VEHICLES. The offeror shall state whether they will or will not comply with all requirements for the care/upkeep of the stored vehicles, as stated in section 7.15 of the PWS.

- The offeror shall demonstrate that they will start/run each vehicle and cycle the air conditioner and heater at least once every 30 days. If the vehicle engine fails to start due to battery failure, the Contractor shall charge the battery and repeat the process. If after the battery has been charged, the engine still fails to start, the Contractor shall document DD Form 788/788-1 and notify the COR or other authorized DMO personnel, as stated in section 7.15.3 of the PWS.
- The offeror shall demonstrate that, at least once every 30 days, it will check tire pressure, maintain proper tire pressure by adding air, to prevent flat spots on tires. If after following these procedures every 30 days, tire(s) on a vehicle do not inflate or are deteriorating, the Contractor shall document the DD Form 788 /788-1 and shall notify the COR or other authorized DMO personnel as noted in section 7.15.1 of the PWS.
- The offeror shall demonstrate that it will maintain all vehicles in a locked condition, except when performing the tasks cited in section 7.15 of the PWS.
- The offeror shall demonstrate that it will annotate unusual maintenance conditions (leaks, dead batteries, etc.) on the DD Form 788/788-1 and report them to the COR or authorized DMO personnel.

g) TOWING. The offeror shall state they will or will not comply with all requirements for towing as stated in section 7.17 of the PWS.

h) ROLLBACK. The offeror shall state they will or will not provide rollback services. Rollback towing services for deceased cases: Towing services to pick up and tow a POV from a designated location to PMO Lot 201 aboard Camp Lejeune, NC as designated by DMO. Price at \$3.00 per mile for 0-25 miles and \$4.00 per mile for 26-250 miles.

NOTE TO OFFEROR: The offeror shall be prepared to conduct a site visit of the location within 24 hours after Government request.

NOTE: ALL RESPONSES SHALL BE MARKED WITH THE CORRESPONDING PARAGRAPH NUMBER. FAILURE TO ADDRESS ALL OF THE ABOVE PARAGRAPHS IN THE OFFEROR'S TECHNICAL OFFER MAY CAUSE THE OFFER TO BE DEEMED UNACCEPTABLE.

2) Past Performance: The offeror shall provide contact information to include, name, phone number, and email address for three (3) references. The references should be for work performed within the last three (3) years and of similar size, scope, and complexity. References other than those identified by the offeror may be contacted by the Government and used in evaluating the offeror's past performance.

Past performance is an indicator of how current and previous customers assess contractor performance under a specific contract performed for them and address the full range of all functions required to make any contractual relationship work. Successful past performance indicates that a contractor understands and possesses the resources to successfully execute a contract; however, it does not necessarily mean a contractor has the resources and skills necessary to perform the specific work requirements of this solicitation.

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror may not be evaluated favorably or unfavorably on past performance. Offerors without a record of relevant past performance will receive a neutral rating.

3) Delivery Information: Clearly state if the offeror can meet the required period of performance. Offerors who can not meet the required period of performance will not be considered for award.

4) Price: The price offered must reflect unit prices, extended amounts per line item, and overall total. (NOTE: All prices must be actual "face value" pricing, having already accounted for any discounts offered/extended to the Government.)

SAM. Offerors must be registered in the System for Award Management (SAM) database and ensure all information is current. Information of registering in SAM may be obtained from www.sam.gov or by calling 866-606-8220.

WIDE-AREA WORKFLOW (WAWF) RECEIPT AND ACCEPTANCE. As a condition of receipt of any resulting order, the Contractor agrees to implement the Department of Defense (DoD) web-based application. Information on registering in WAWF may be obtained from <https://wawf.eb.mil/xhtml/unauth/registration/notice.xhtml> or by calling 866-618-5988.

PREPARATION OF OFFER. Offers submitted shall include the following:

- a) Technical Capability
- b) Past Performance References
- c) Delivery Information
- d) Price
- e) Commercial and Government Entity (CAGE) Code and Unit Identification Code (UIC).

QUESTIONS. Questions related to this RFQ shall be received by the Contracting Department NLT **Monday, May 11, 2026 at 1PM EST.** Responses will be provided via an amendment to the RFQ.

SUBMISSION OF QUOTES: Offers in response to this RFQ shall be received by the Contracting Department within the date and time specified on Page 1, Block 8 of this solicitation, to be considered for award. Solicitations received after this date and time may not be considered for award. The information submitted shall be clear and legible.

(a) Offers may be submitted via email (no larger than 2MB) to Mrs. Tiffany Morris at tiffany.morris@usmc.mil (PREFERRED METHOD) or via hand delivery/courier to Contracting Department, Bldg. 316 Holcomb Blvd., Camp Lejeune, NC 28542. It is solely the Contractor's responsibility to ensure quotes are received within the specified timeframe.

(b) Options. the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer, unless a written notice of withdrawal is received before award.

Addendum to Evaluation - Commercial Product and Commercial Services

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	Feb 2026		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	Feb 2026		
52.233-2	Service of Protest. (Deviation 2026-O0038)	Feb 2026		
52.222-56	Certification Regarding Trafficking in Persons Compliance Plan. (Deviation 2026-O0038)	Feb 2026		
52.237-1	Site Visit.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.215-7010	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data.	May 2024		
252.225-7031	Secondary Arab Boycott of Israel .	Jun 2005		
252.219-7012	Competition for Religious-Related Services.	Apr 2018		

FAR Clauses Incorporated by Full Text

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation. (Jun 2020)

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It [] is [] is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 [] a full exemption, or [] partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.219-1 Small Business Program Representations. (Deviation 2026-O0038)

(Feb 2026)

Small Business Program Representations (Feb 2026) (Deviation 2026-O0038)

(a) *Definitions*. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled

by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 493190.

(2) The small business size standard is \$36.5 Million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that-

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [_____
The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(5) *SDVOSB joint venture eligible under the SDVOSB Program.* [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be-

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be

completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of provision)

52.204-90 Offeror Identification. (Deviation 2026-O0038)

(Feb 2026)

Offeror Identification (Feb 2026) (Deviation 2026-O0038)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (<https://www.sam.gov>) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) *Definitions.* As used in this provision-

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

Common parent means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer Identification Number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) *Unique entity identifier (UEI).*

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) *Taxpayer identification.* The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: _____;

☐ TIN has been applied for; or

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government; or

☐ Offeror is an agency or instrumentality of the Federal Government.

(2) *Type of organization.*

☐ Sole proprietorship;

- ☐ Partnership;
- ☐ Corporate entity (not tax-exempt);
- ☐ Corporate entity (tax-exempt);
- ☐ Government entity (Federal, State, or local);
- ☐ Foreign government;
- ☐ International organization per 26 CFR 1.6049-4; or
- ☐ Other.

(3) *Common parent.*

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

☐ Name and TIN of common parent:

Name: _____

TIN: _____

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is...	Then...
Located in the United States or its outlying areas	Submit a request to the DLA CAGE Branch via https://cage.dla.mil
Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www.nato.int/structur/ac/135/about/contacts)
Located outside the United States and its outlying areas and its country is not a member of NATO or a sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) (https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx)

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a "doing business as" name) for-

- (i) Its immediate owner(s), if any;
- (ii) Its highest-level owner, if any; and
- (iii) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

Owner Type	CAGE Code	Legal Business Name
Immediate owner	_____	_____
Highest-level owner	_____	_____
Predecessor*	_____	_____

* Predecessor CAGE code may be marked "Unknown."

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Alternate II) (Feb 2026) Alternate II (Jan 2025)

Alternate II (JAN 2025). As prescribed in 25.601(b)(2)(ii), substitute the following paragraph (b) for paragraph (b) of the basic provision:

(b) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act".

ISRAELI END PRODUCTS:

Line Item No.

[List as necessary]

DFARS Clauses Incorporated by Full Text

252.225-7000 Buy American--Balance of Payments Program Certificate. (Feb 2024)

BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

Line Item Number	Country of Origin

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55% Domestic Content (yes/no)

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number _____

[List as necessary]

(End of provision)

252.225-7035 Buy American--Free Trade Agreements--Balance of Payments Program Certificate. (Feb 2024)

BUY AMERICAN-FREE TRADE AGREEMENTS-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) *Definitions.* "Bahraini end product," "commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "foreign end product," "Moroccan end product," "Panamanian end product," "Peruvian end product," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7036, Buy American-Free Trade Agreements-Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) For line items subject to the Buy American-Free Trade Agreements-Balance of Payments Program-Basic clause of this solicitation, will evaluate offers of qualifying country end products or Free Trade Agreement country end products other than Bahraini end products, Moroccan end products, Panamanian end products, or Peruvian end products without regard to the restrictions of the Buy American or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American-Free Trade Agreements-Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except the end products listed in paragraph (c)(2) of this provision, is a domestic end product;

(ii) Each domestic end product listed in paragraph (c)(3) of this provision contains a critical component or a critical item; and

(iii) Components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country.

(2) The Offeror shall identify all end products that are not domestic end products.

(i) The Offeror certifies that the following supplies are qualifying country (except Australian) end products:

_____(Line Item Number) _____(Country of Origin)

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products other than Bahraini end products, Moroccan end products, Panamanian end products, or Peruvian end products:

_____(Line Item Number) _____(Country of Origin)

(iii) The following supplies are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55% Domestic Content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

(3) The Offeror shall list the line item numbers of domestic end products that contain a critical component or a critical item (see section 25.105 of the Federal Acquisition Regulation).

Line Item Number: _____

(End of provision)